



Australian Government

Defence

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**PROJECT NAME: FACILITIES TO SUPPORT HOBART CLASS
DESTROYER (DDG) AEGIS COMBAT SYSTEM
ENHANCEMENT AT NAVY TRAINING SYSTEMS CENTRE
RANDWICK AND DEFENCE PLAZA SYDNEY**

HEAD CONTRACT (GMP)

INVITATION TO REGISTER INTEREST

Please note:

- matters in **[SQUARE BRACKETS AND BOLD]** are to be completed by the Applicant before lodging a Registration of Interest.

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1. INFORMATION FOR APPLICANTS

1.1 The Project and the Works

At the time this invitation to register interest (**Invitation to Register Interest**) is issued to persons or entities interested in selection for the tender phase (**Applicant**):

- (a) The Royal Australian Navy (**RAN**) is upgrading the Aegis Combat System and Australian Interface across their existing fleet of Hobart Class Destroyers (DDG). To support the deployment of the upgrade while maintaining the ongoing operation of the existing system, the RAN requires the construction of new supporting facilities and infrastructure.
- (b) The project and the works will deliver fit for purpose shore-based facilities and infrastructure to support the integration, operation and training of the new systems. The facilities are required to address the increase in staff, equipment, testing and integration, and storage requirements of the new capability, while also support the future engineering and operational training needs of the platform.
- (c) The works to be delivered under this project include:
 - (i) Navy Training Systems Centre – Randwick (**NTSC-R**).
 - A. Provision of new and refurbished individual and collective training facilities at NTSC-R, including the modification and upgrade of the existing training facilities and construction of a new two storey extension.
 - B. The existing buildings will be occupied and must remain fully operational throughout the works. The contractor is to be responsible for maintaining appropriate segregation of construction and Defence operations, facilitating the safe and efficient movement of materials and personnel to and from the facility, and maintaining ongoing compliance with Defence security requirements. The contractor must ensure that the works are appropriately planned and executed so as to minimise the impacts on Defence, and prevent any interruption to the operations of the facility.
 - C. The NTSC-R Works are to be carried out across two Stages, with both Stages to commence concurrently.
 - 1) The Stage 1 Early Works will include:
 - a) modification and reconfiguration of existing secure teaching spaces (including both technical and general classrooms) within the existing NTSC-R facility; and
 - b) services infrastructure works across the site, including relocation of existing underground services infrastructure below the planned new extension (including stormwater infrastructure, gas, fire water communications and electrical services), and upgrades to the existing electrical substation.
 - 2) The Stage 2 Works will include the expansion of the existing training facilities through the construction of a new wing to the eastern side of the existing building. The site for the extension is undeveloped, currently utilised as a sporting field. The NTSC-R is an operational Defence site, with the construction works to be completed adjacent to a functioning training facility that must not be interrupted. Key features of the new extension include:
 - a) a new large, isolated structure with an approximate building footprint of 2,900 sqm;

- b) teaching laboratories and specialist teaching spaces, classrooms, services and plant rooms, communications/server rooms, storage areas, amenities (including change rooms, showers, lockers), breakout areas and tea making facilities points, a two-storey specialist gun mount area, and general circulation spaces;
 - c) a mix of standard (Zone 2) and elevated (Zone 4) construction, ensuring appropriate security and compartmentalisation of key areas while minimising functional limitations within low side environments and break areas.
 - d) building construction comprising of reinforced concrete foundations and slab-on-ground, post-tensioned first floor slab, steel-framed roof structure, and profiled metal sheet roofing;
 - e) external façades comprising of precast concrete panels, aluminum-framed double-glazed windows, louvres, and sunshades, consistent with the architectural design and character of the adjacent buildings. Steel roller doors will be provided to facilitate future access for specialist fit out by others, with all building elements to meet the required acoustic, thermal, and physical security performance specifications.
 - f) new building services as required to provide a fully functional and compliant building. Services to be provided include general and specialist power services with supplementary UPS backup systems, lighting, potable water, gas, sewer, wet and dry fire systems (including specialist/gaseous fire suppression), security and electronic access controls, secure and commercial data and voice systems (including video conferencing capabilities) and BMS integrated mechanical services (including HVAC, ventilation, specialist gas suppression and smoke clearance systems, and reticulated compressed air). The contractor will also be responsible for the required upgrades to the electrical substation. All new services shall be fully integrated with the existing site systems, with consideration for ongoing maintenance, whole of life costs and opportunities for commonality amongst critical spares; and
 - g) soft and hard landscaping elements, along with make good works to disturbed areas.
- (ii) Defence Plaza Sydney (DPS).
 - A. By way of a separate Stage 3, the works will also include the provision of upgraded working accommodation to support the forecast growth in DDG System Program Office (SPO) staff at DPS.
 - B. The works will include:
 - 1) minor modification of an existing secure office fit out to accommodate the increased SPO workforce; and

- 2) modifications to existing building services, non-loadbearing internal partitions and finishes.

- C. The contractor is to be responsible for maintaining appropriate segregation of construction and Defence operations, facilitating the safe and efficient movement of materials and personnel to and from the facility, and maintaining ongoing compliance with Defence security requirements. The contractor shall ensure that the works are appropriately planned and executed so as to minimise the impacts on Defence, and prevent any interruption to the operations of the facility.

1.2 Form of Contract

- (a) At the time this Invitation to Register Interest is issued to the Applicant, the Commonwealth of Australia (**Commonwealth**) intends to deliver the works using the **construct only** delivery method, under the Defence Head Contract (GMP). This is a standard form contract and is available from the Defence website located at www.defence.gov.au/.
- (b) In this Invitation to Register Interest, references to the "Disclaimer and Confidentiality Agreement", the "Tender Documents" and the "Conditions of Contract" are references to those documents which will be issued to shortlisted Applicants, templates of which, as they apply to the Defence Head Contract (GMP), are available from the website specified in paragraph (a).

1.3 Timeframe

At the time this Invitation to Register Interest is issued to the Applicant, the Commonwealth anticipates that the award date for the contract will be in or about **May 2027** with completion of the works in or about **September 2029**.

1.4 Estimated Value of the Works

At the time this Invitation to Register Interest is issued to the Applicant, the estimated value of the works is between **\$60 million** and **\$80 million**.

1.5 ITR Administrator

The Commonwealth has appointed RPS AAP Consulting Pty Ltd, Attn: Kyle Trayhurn (**ITR Administrator**) (ests4000ph6@rpsconsulting.com) to assist it in administering the Invitation to Register Interest and the registration of interest process.

1.6 AusTender, the Australian Government Tender System

- (a) AusTender is the Australian Government's procurement information system. Access to and use of AusTender is subject to terms and conditions. In participating in this registration of interest process, the Applicant must comply with those terms and conditions and any applicable instructions, processes, procedures and recommendations as advised on AusTender at <https://www.tenders.gov.au/infolinks/termsfuse>.
- (b) The Applicant must direct all queries and requests for technical or operational support related to AusTender to the AusTender Helpdesk using the Contact Us form available at <https://www.tenders.gov.au/contactus/show>.
- (c) The Applicant must direct all questions related to the Invitation to Register Interest or the registration of interest process to the ITR Administrator under clause 4(a).
- (d) Without limiting paragraph (a), the Applicant's attention is drawn to clauses 1.8 and 1.9 of the AusTender terms and conditions in relation to late receipt of Registrations of Interest and proof of lodgement.

2. SELECTION PROCESS AND EVALUATION CRITERIA

This is the first phase of a two-phase selection process. The Commonwealth anticipates inviting no more than 5 shortlisted Applicants to lodge a tender for the contractor's activities and the works.

Applicants are requested to provide a clear and succinct statement of their capabilities in the response to the Invitation to Register Interest (**Registration of Interest**).

Subject to the Invitation to Register Interest, the Commonwealth:

- (a) will, in considering a Registration of Interest, apply the following evaluation criteria:
 - (i) **proposed resources (50% weighting)**. The extent to which the Applicant has demonstrated that it has the resources and capacity to perform the contractor's activities and otherwise meet its obligations under the contract if it is the successful tenderer (noting that the type of information the Commonwealth is seeking is outlined in Schedule A - Proposed Resources);
 - (ii) **previous performance (50% weighting)**. The extent to which the Applicant has demonstrated that it has the experience and ability to perform the contractor's activities and otherwise meet its obligations under the contract if it is the successful tenderer (noting that the type of information the Commonwealth is seeking is outlined in Schedule B - Previous Performance); and
 - (iii) **information security (no weighting, the Registration of Interest will be evaluated with reference to whether or not this evaluation criterion is met)**. Whether or not the Applicant has demonstrated that it has the ability to meet its information security obligations if it is invited to lodge a tender for the contractor's activities and the works and will otherwise meet its obligations under the contract if it is the successful tenderer (noting that the type of information the Commonwealth is seeking is outlined in Schedule C - Information Security);
- (b) in considering a Registration of Interest, may (in its absolute discretion):
 - (i) obtain and take into account information from referees, enquiries and investigations, including from referees on prior or current projects on which an Applicant may have been involved (whether or not nominated by the Applicant in its Registration of Interest) and in connection with any other Commonwealth project;
 - (ii) take into account any information lodged by the Applicant in any registration of interest process, tender process or similar procurement process in connection with this project or any other Commonwealth project;
 - (iii) without limiting any other right or remedy of the Commonwealth (under this Invitation to Register Interest or otherwise at law or in equity), decide not to evaluate a Registration of Interest (or continue to evaluate a Registration of Interest), if:
 - A. the Commonwealth considers (in its absolute discretion), and whether as a result of the exercise of its rights under clause 21 or otherwise, that the Applicant does not have the necessary financial viability to perform the contractor's activities and otherwise meet its obligations under the contract if it is the successful tenderer;
 - B. the Applicant has:
 - 1) failed to comply with any of its obligations in this Invitation to Register Interest; or
 - 2) otherwise acted inconsistently with the registration of interest process; or
 - C. the Commonwealth considers (in its absolute discretion) that the Registration of Interest is incomplete or clearly not competitive against the evaluation criteria under paragraph (a) and is unlikely to represent value for money; and
 - (iv) decide not to evaluate or continue to evaluate any material provided in excess of any page limit specified in a Schedule; and

- (c) anticipates that, in relation to the second phase of this two-phase selection process, when a tender is lodged by a shortlisted Applicant for the contractor's activities and the works:
- (i) minimum form and content requirements for that tender will comprise:
- A. a 90 day tender validity period (which, if the procurement is suspended under or in connection with the Judicial Review Act, will be extended by the period of suspension up to a maximum of 130 days);
 - B. completion and lodgement of specified items of a tender schedule in relation to the Indigenous Procurement Policy;
 - C. completion and lodgement of a "Supplier Environmental Sustainability Plan" (which includes an "ESP Policy Commitment Report") in relation to the Environmentally Sustainable Procurement Policy; and
 - D. other than to the extent permitted under the Tender Documents, the acceptance (without departure, qualification, amendment, limitation or exclusion) of the proposed contract; and
- (ii) the Commonwealth will apply the following evaluation criteria:
- A. **draft project plans (no weighting, the tender will be evaluated with reference to whether or not this evaluation criterion is met).** Whether or not the shortlisted Applicant has demonstrated that it comprehends key issues and will implement appropriate solutions and management strategies in performing the contractor's activities to which the relevant project plans relate;
 - B. **proposed resources (40% weighting).** The extent to which the shortlisted Applicant has demonstrated that it has the resources and capacity to perform the contractor's activities and otherwise meet its obligations under the proposed contract;
 - C. not used;
 - D. **program and minimum resource schedule (40% weighting).** The extent to which the shortlisted Applicant has demonstrated that it will satisfactorily program and resource the contractor's activities and otherwise meet its obligations under the proposed contract;
 - E. **industry inclusion and skills (20% weighting).** The extent to which the:
 - 1) shortlisted Applicant has demonstrated its commitment to increasing Indigenous participation (including, if applicable, in respect of any remote area);
 - 2) shortlisted Applicant has demonstrated its commitment to local industry participation and that it will implement appropriate solutions and management strategies to ensure that local industry is given full, fair and reasonable opportunity to participate in the delivery of the works; and
 - 3) shortlisted Applicant's past performance and reporting in accordance with the Australian Skills Guarantee Procurement Connected Policy (if any) is satisfactory and the shortlisted Applicant has demonstrated that it will meet (or, if applicable, meet or exceed) its proposed targets (and, if applicable, comply with its gender equality action plan),and that it will otherwise meet its obligations under the proposed contract;

- F. **Commonwealth Procurement Rules compliance (no weighting, the tender will be evaluated with reference to whether value for money has been demonstrated).** The extent to which the shortlisted Applicant has:
- 1) provided details of its practices regarding labour regulations and ethical employment;
 - 2) provided details of its practices regarding achieving efficiencies and savings in whole of life costs;
 - 3) demonstrated its capability to meet the applicable standards; and
 - 4) provided details of its organisational commitment to ethical conduct;
- G. **financial (no weighting, the tender will be evaluated with reference to whether value for money has been demonstrated).** The extent to which the shortlisted Applicant has demonstrated that its tendered amounts and other financial information, when considered in conjunction with all other evaluation criteria and all other information, is value for money;
- H. **alternative proposals (if any) (no weighting, the tender will be evaluated with reference to whether value for money has been demonstrated).** The extent to which the shortlisted Applicant has demonstrated greater value for money in any alternative proposal lodged;
- I. **miscellaneous matters for evaluation:**
- 1) **insurance details and levels, the shortlisted Applicant's commercial-in-confidence information and proposed minimum warranty periods (no weighting, the tender will be evaluated with reference to whether value for money has been demonstrated);** and
 - 2) **information security (no weighting, the tender will be evaluated with reference to whether or not this evaluation criterion is met).** Whether or not the shortlisted Applicant has demonstrated that it has the ability to meet its information security obligations under the proposed contract; and
- J. **Environmentally Sustainable Procurement (no weighting, the tender will be evaluated with reference to whether value for money has been demonstrated).** The extent to which the shortlisted Applicant has demonstrated that its proposed approach to optimising environmental sustainability outcomes and claims, its proposed environmental outcomes and its corporate commitment to environmental sustainability is satisfactory and that it will otherwise meet its obligations under the proposed contract.

The evaluation criteria (and corresponding weightings for each evaluation criterion), as well as the minimum form and content requirements and conditions for participation (if any), for the second phase of this two-phase selection process will be set out in the Tender Documents in that second phase. The evaluation criteria, minimum form and content requirements and conditions for participation (if any) for the second phase may differ from the above to the extent that there is any change to the current circumstances or anticipated project requirements before the issue of the Tender Documents.

3. REGISTRATION OF INTEREST

3.1 Conforming Registration of Interest, including ATM Close Date and ATM Close Time, Minimum Form and Content Requirements and Conditions for Participation

To lodge a conforming Registration of Interest:

- (a) **the Registration of Interest must be:**
 - (i) lodged electronically via AusTender at www.tenders.gov.au; and
 - (ii) received before Monday 17 August 2026, 12.00 noon ACT Local time (**ATM Close Date and ATM Close Time**);
- (b) if clause 23 applies, the Applicant must, at the time of lodging its Registration of Interest, satisfy the **minimum form and content requirement** for this registration of interest process being that the Applicant must complete and lodge Schedule E - Statement of Tax Record (including by attaching all valid and satisfactory STRs required for its entity type); and
- (c) the Applicant must, at the time of lodging its Registration of Interest, satisfy each **condition for participation** specified in Schedule D - Conditions for Participation (if any).

3.2 Non-Conforming Registration of Interest

The Applicant acknowledges that:

- (a) it is responsible for lodging its Registration of Interest in accordance with clause 3.1(a) and managing all surrounding risks, including those associated with the use of AusTender and all information technology risks. If the Registration of Interest is not lodged in accordance with clause 3.1(a), the Registration of Interest will be non-conforming and will not be evaluated (or continue to be evaluated), unless the reason it was not lodged in accordance with clause 3.1(a) was solely due to mishandling by the Commonwealth;
- (b) if clause 23 applies, if the Applicant does not satisfy each **minimum form and content requirement** specified under clause 3.1(b), the Registration of Interest will be non-conforming and will not be evaluated (or continue to be evaluated) unless the Commonwealth considers (in its absolute discretion) that the failure to satisfy a **minimum form and content requirement** was due to an unintentional error by the Applicant. If the Commonwealth considers (in its absolute discretion) that the failure to satisfy a **minimum form and content requirement** may be due to an unintentional error by the Applicant:
 - (i) the ITR Administrator will notify the Applicant that there has been a failure to satisfy a **minimum form and content requirement** and that it requires the Applicant to provide a response to the ITR Administrator by email by the time and date specified in the notice; and
 - (ii) the Commonwealth may (in its absolute discretion) review and accept any correction of an unintentional error in respect of a **minimum form and content requirement** provided in the Applicant's response.

For the purposes of paragraphs (b)(i) and (b)(ii), to the extent that the correction of the unintentional error involves the provision of any valid and satisfactory STRs required for the Applicant's entity type, such STRs must be provided by no later than 10 business days after the date of the notice under paragraph (b)(i). If the Applicant fails to meet this timeframe, the Registration of Interest will be non-conforming and will not be evaluated (or continue to be evaluated); and

- (c) if the Applicant does not satisfy each **condition for participation** specified under clause 3.1(c), the Registration of Interest will be non-conforming and will not be evaluated (or continue to be evaluated).

3.3 Administrative Arrangements

- (a) To assist the Commonwealth in identifying the Applicant, identifying its Registration of Interest and evaluating its Registration of Interest, the Applicant is requested to:

- (i) provide the information requested in the Registration of Interest Form;
 - (ii) provide the information requested in:
 - A. Schedule A - Proposed Resources;
 - B. Schedule B - Previous Performance;
 - C. Schedule C - Information Security;
 - D. Schedule D – Conditions for Participation (if any); and
 - E. if clause 23 applies, (**minimum form and content requirement**) Schedule E - Statement of Tax Record;
 - (iii) lodge the Registration of Interest Form and each Schedule described under subparagraphs (i) and (ii) in separate, stand-alone, unsecured, electronic files in Microsoft Word (.docx), Microsoft Excel (.xlsx), and/or PDF format (.PDF) which:
 - A. identify:
 - 1) the project;
 - 2) the Applicant's name; and
 - 3) the relevant Registration of Interest Form and Schedule references;
 - B. do not exceed the file size of eight (8) files, with a combined file size of no more than 2GB (with files compressed or zipped as required);
 - C. do not contain any virus, malicious code or any other matter or thing which might affect the integrity, useability, security or operation of the Commonwealth's or ITR Administrator's systems;
 - D. do not contain macros, scripts or executable codes of any kind; and
 - E. otherwise comply with the AusTender terms and conditions;
 - (iv) lodge its Registration of Interest in accordance with the response lodgement procedures described in the Invitation to Register Interest and on AusTender. The Registration of Interest must be completely self-contained, without hyperlinks, QR codes or other material incorporated by reference;
 - (v) unless otherwise specified, express measurements in Australian legal units of measurement; and
 - (vi) unless otherwise specified, provide its Registration of Interest in A4 and portrait format and otherwise ensure that all contents are clear, legible and readable by using appropriate print colours and font sizes (equivalent to at least Arial 10 point or Times New Roman 11 point), but these are **not**, unless expressly stated above, minimum form and content requirements for its Registration of Interest.
- (b) If the ITR Administrator (in its absolute discretion) notifies the Applicant that the Applicant is to provide clarification or authentication of material included in the Registration of Interest (including any scanned or imaged material such as the Registration of Interest Form or other documents or information), the Applicant must provide the originals of such material:
- (i) by post to the ITR Administrator at the postal address specified in the ITR Administrator's notice; and
 - (ii) by the time and date specified in the ITR Administrator's notice,

but these are **not** minimum form and content requirements for its Registration of Interest.

4. QUESTIONS, COMMUNICATIONS, AMENDMENTS TO INVITATION TO REGISTER INTEREST AND INFORMATION DOCUMENTS

- (a) If the Applicant finds any discrepancy, ambiguity, error or omission in the Invitation to Register Interest, has any questions or concerns, or wishes to make any enquiry regarding the Invitation to Register Interest or the registration of interest process, it must notify the ITR Administrator by email no later than 7 days prior to the ATM Close Date and ATM Close Time. Subject to the Commonwealth Procurement Rules, neither the Commonwealth nor the ITR Administrator is obliged to respond to all such notices, questions, concerns or enquiries. The Commonwealth may (in its absolute discretion) respond to such notices, questions, concerns or enquiries in the form of addenda under paragraph (b) or as an information document under paragraph (c).
- (b) The Commonwealth may (in its absolute discretion) amend the Invitation to Register Interest at any time prior to the ATM Close Date and ATM Close Time. All amendments to the Invitation to Register Interest will be in the form of addenda. No explanation or interpretation of the Invitation to Register Interest may be relied upon by the Applicant unless in the form of addenda. All addenda issued under this paragraph (b) will become part of the Invitation to Register Interest.
- (c) The Commonwealth may (in its absolute discretion) publish a document expressly stated to be an "information document" at any time prior to the ATM Close Date and ATM Close Time. All information documents under this paragraph (c) are provided for the "information only" of the Applicant and are provided subject to the Applicant's acknowledgements in clause 5. No information document under this paragraph (c) will become part of the Invitation to Register Interest. This paragraph (c) applies notwithstanding that AusTender describes such documents as "addenda" or "ATM documents".
- (d) The ITR Administrator and the Commonwealth may give any notice or undertake any written communication contemplated by this Invitation to Register Interest (including all addenda and information documents) by publication on AusTender, or otherwise by email, other electronic means, post or hand.
- (e) In the event of a discrepancy between a communication by AusTender and a communication by any other means, the communication by AusTender will prevail.

5. REGISTRATION OF INTEREST PROCESS AND OTHER ACKNOWLEDGEMENTS

The Applicant acknowledges that:

- (a) to the extent permitted by law:
 - (i) the Commonwealth does not intend to create any contract or other relationship under which the Commonwealth is legally obliged to conduct the registration of interest process in any manner or at all and that there is in fact no such contract or other relationship in existence;
 - (ii) there will be no procedural or substantive limitation upon the manner in which the Commonwealth may (in its absolute discretion) conduct the registration of interest process;
 - (iii) without limiting any other clause of this Invitation to Register Interest, neither the Commonwealth, the ITR Administrator nor anyone on the Commonwealth's behalf makes any warranty, guarantee or representation about:
 - A. the relevance, completeness, accuracy or adequacy of any information document or whether or not any other information exists; or
 - B. any Registration of Interest, the Commonwealth's requirements for the contractor's activities, the works, the project or the way in which it will evaluate Registrations of Interest arising out of or in connection with anything which the Commonwealth states or does or omits to state or do in, arising out of or in connection with any industry briefing or presentation under clause 16;

- (iv) the Commonwealth does not owe any duty of care to the Applicant in respect of any information document or in connection with any industry briefing or presentation under clause 16; and
- (v) the Commonwealth will not be liable upon any claim by the Applicant arising out of or in connection with this registration of interest process, including the information documents or anything which the Commonwealth states or does, or omits to state or do in, arising out of or in connection with any industry briefing or presentation under clause 16;
- (b) the Applicant will not in any way rely upon any information document (or the relevance, completeness, accuracy or adequacy of any information document) or any industry briefing or presentation under clause 16 for the purposes of preparing, amending or negotiating its Registration of Interest or, if it is invited to lodge a tender for the contractor's activities and the works, its tender, or entry into any contract with the Commonwealth;
- (c) it will prepare its Registration of Interest and, if it is invited to lodge a tender for the contractor's activities and the works, its tender, and enter into any contract with the Commonwealth based on its own investigations, interpretations, deductions, information and determinations;
- (d) the Commonwealth may vary, suspend, discontinue or terminate the registration of interest process at any time and for any reason; and
- (e) the Commonwealth is proceeding with the registration of interest process strictly on the basis of, and in reliance upon, the acknowledgements set out in this clause 5 and elsewhere in this Invitation to Register Interest.

6. NOTIFICATION AND DEBRIEF

- (a) If the Applicant:
 - (i) did not lodge a conforming Registration of Interest:
 - A. the Commonwealth will notify the Applicant in writing; and
 - B. unless the Commonwealth considers (in its absolute discretion) that it would be appropriate in the particular circumstances to do so, no debrief will be provided; or
 - (ii) did lodge a conforming Registration of Interest, the Commonwealth will notify the Applicant in writing if its Registration of Interest was successful or unsuccessful.
- (b) The Applicant may, within 14 days of receipt of notice from the Commonwealth under:
 - (i) paragraph (a)(i)A, notify the ITR Administrator by email that the Applicant requests the Commonwealth exercise its discretion to provide a debrief (such request to include reasons why the Applicant considers that it would be appropriate in the particular circumstances for the Commonwealth to conduct a debrief); or
 - (ii) paragraph (a)(ii), notify the ITR Administrator by email that a debrief is requested.
- (c) If a request is made under paragraph (b)(i), the ITR Administrator will notify the Applicant whether the Commonwealth, in the exercise of its absolute discretion, has agreed to provide a debrief.
- (d) If:
 - (i) a request is made under paragraph (b)(ii); or
 - (ii) the ITR Administrator has notified the Applicant under paragraph (c) that the Commonwealth agrees to provide a debrief,then:

- (iii) the Commonwealth will determine (in its absolute discretion) a suitable time, date and place for the debrief;
 - (iv) the ITR Administrator will notify the Applicant of the time, date and place of the debrief; and
 - (v) the Commonwealth will provide the debrief.
- (e) The purpose of the debrief is to discuss the reasons why the Registration of Interest was non-conforming, successful or unsuccessful (as the case may be) and neither the Commonwealth nor the ITR Administrator is obliged to make any comparison with or provide any information about any other Applicant or Registration of Interest at the debrief.

7. COSTS AND CLAIMS

- (a) Without limiting any other provision of this Invitation to Register Interest and except to the extent of any compensation awarded under the Judicial Review Act, no payment will be made by the Commonwealth to the Applicant or any other person or entity for any costs, expenses, losses or damages incurred or suffered by the Applicant or any other person or entity arising out of or in connection with preparing a Registration of Interest, the registration of interest process (including an industry briefing or a debrief) or any failure to comply with the Invitation to Register Interest.
- (b) The Applicant lodges its Registration of Interest and, if it is invited to lodge a tender for the contractor's activities and the works, its tender for the contractor's activities and the works, on the basis that it releases the Commonwealth from all claims (at law or in equity) in respect of any costs, expenses, losses or damages incurred or suffered by the Applicant or any other person or entity arising out of or in connection with preparing a Registration of Interest, the registration of interest process (including an industry briefing or a debrief) or any failure to comply with the Invitation to Register Interest.

8. JOINT BIDS

8.1 Lodgement on a Joint Bid Basis

- (a) The Commonwealth offers the Applicant the opportunity to lodge its Registration of Interest on a Joint Bid Basis.
- (b) For the purposes of the Invitation to Register Interest, **Joint Bid Basis** means a Registration of Interest lodged:
- (i) by an unincorporated joint venture; or
 - (ii) on any other basis involving more than one party where the Commonwealth is relying upon a representation that those parties will be jointly and severally responsible for performing the contractor's activities and otherwise meeting the obligations under the contract if the parties are the successful tenderer.
- (c) The Applicant acknowledges that if its Registration of Interest was not lodged on a Joint Bid Basis and it is invited to lodge a tender for the contractor's activities and the works, it will not be permitted to lodge a tender on a Joint Bid Basis (whether with any one or more of the other tenderers or any other person or entity).

8.2 Completion of Registration of Interest Form and Schedules

Where the Registration of Interest is lodged on a Joint Bid Basis, the Applicant is requested to:

- (a) comply with any specific requirement of this Invitation to Register Interest (including any Schedule) insofar as it relates to a Registration of Interest lodged on a Joint Bid Basis;
- (b) otherwise ensure that it provides any information which it considers relevant to its proposed joint bid arrangements and each entity comprising the Applicant in the context of its response to the Registration of Interest Form and each Schedule; and

- (c) complete and lodge a single Registration of Interest Form on behalf of all entities that are lodging the Registration of Interest on a Joint Bid Basis and ensure that the Registration of Interest Form is duly executed by each such entity.

9. RESTRICTION ON USE OF PERSONNEL IN PREPARATION OF REGISTRATION OF INTEREST

- (a) Subject to paragraph (c)(i), the Applicant must ensure that its Registration of Interest is not prepared (in whole or in part) by any officer, employee, agent or adviser of the Applicant who was:
 - (i) an employee of the Department of Defence, or involved in any capacity in the planning or performance of the contractor's activities, the works or the project, at any time during the 12 months immediately preceding the date on which the Invitation to Register Interest was issued to the Applicant; or
 - (ii) involved in any capacity in the Commonwealth's management of the registration of interest process or preparation of the Invitation to Register Interest at any time.
- (b) If the Applicant wishes to request permission to have a person described under paragraph (a) contribute to or participate in the preparation of the Registration of Interest, it must notify the ITR Administrator by email no later than 14 days prior to the ATM Close Date and ATM Close Time, providing details of the person, the person's status under paragraph (a) and the person's proposed contribution to or participation in the preparation of the Registration of Interest.
- (c) If a request is made under paragraph (b), the ITR Administrator will notify the Applicant that the Commonwealth (in its absolute discretion) either:
 - (i) grants permission, whether with or without such conditions as the Commonwealth thinks fit; or
 - (ii) refuses permission.

10. CONFLICT OF INTEREST

- (a) The Applicant must not place itself, and must ensure that its officers, employees, agents and advisers do not place themselves, in a position that may or does give rise to an actual, potential or perceived conflict of interest between the interests of the Commonwealth and the Applicant during this registration of interest process.
- (b) If during this registration of interest process a conflict of interest arises, or appears likely to arise, the Applicant must immediately notify the ITR Administrator by email, providing details of such conflict of interest and the steps which the Applicant has taken (or will take) to prevent, end, avoid, mitigate, resolve or otherwise manage the conflict of interest.
- (c) If a notice is given under paragraph (b), the ITR Administrator will notify the Applicant of any steps that the Commonwealth requires the Applicant to take to prevent, end, avoid, mitigate, resolve or otherwise manage the conflict of interest.

11. USE OF REGISTRATION OF INTEREST DOCUMENTS

The Applicant acknowledges that:

- (a) its Registration of Interest and any other documents arising out of or in connection with this invitation to register interest process become the property of the Commonwealth; and
- (b) subject to the Commonwealth Procurement Rules, the Commonwealth may (in its absolute discretion) use, retain and copy the information contained in its Registration of Interest and any other documents arising out of or in connection with this invitation to register interest process for any purpose arising out of or in connection with:
 - (i) the evaluation and selection of applicants and tenderers;

- (ii) the development and preparation of tender documents and any subsequent tender process conducted by the Commonwealth in respect of the contractor's activities, the works or the project;
- (iii) verifying the accuracy, consistency and adequacy of information provided under any other invitation to register interest process, tender process or similar procurement process conducted by the Commonwealth; or
- (iv) the development and preparation of invitation to register interest documents, tender documents or similar documents and any subsequent invitation to register interest process, tender process or similar procurement process conducted by the Commonwealth.

12. UNLAWFUL CONDUCT

Without limiting clause 2(b)(iii), the Commonwealth may (in its absolute discretion) decide not to evaluate (or continue to evaluate) a Registration of Interest if the Registration of Interest has been prepared:

- (a) in breach of or otherwise inconsistently with any statutory requirement (including Commonwealth policy) regarding the offering of unlawful inducements in connection with the preparation of a registration of interest or during a registration of interest process; or
- (b) with the utilisation of information unlawfully obtained from the Commonwealth.

13. PROCUREMENT COMPLAINTS

13.1 General Procurement Complaints

If the Applicant wishes to make a complaint in relation to this registration of interest process:

- (a) subject to paragraph (b), the Applicant should submit the complaint in writing to cfi.qualityandcompliance@defence.gov.au; or
- (b) if the Applicant has reason to believe that the complaint satisfies the requirements of the Judicial Review Act, the Applicant may submit the complaint under the process set out in clause 13.2.

13.2 Complaints under the Government Procurement (Judicial Review) Act 2018

- (a) Clause 13.2 only applies if this registration of interest process is a Covered Procurement for the purposes of the Judicial Review Act.
- (b) The Judicial Review Act establishes a statutory framework for suppliers to make complaints about non-compliance with specific provisions of the Commonwealth Procurement Rules in respect of Covered Procurements.
- (c) If this clause 13.2 applies and the Applicant has reason to believe that:
 - (i) the Commonwealth or an official of the Commonwealth has engaged, is engaging or is proposing to engage in any conduct in contravention of the Relevant Commonwealth Procurement Rules in relation to this registration of interest process; and
 - (ii) the interests of the Applicant are affected by the conduct,the Applicant may submit a complaint about the conduct in writing to procurement.complaints@defence.gov.au.
- (d) Where requested by the Commonwealth, the Applicant must do all things reasonably necessary to cooperate with the Commonwealth (including providing information or answering questions) in the investigation and attempted resolution of any complaint in respect of this registration of interest process under this clause 13.2.
- (e) A public interest certificate under the Judicial Review Act in relation to the registration of interest process has not been issued for this procurement.

- (f) If a public interest certificate has not been issued for this procurement, a public interest certificate may be issued by the Commonwealth at any time during the registration of interest process (including after any complaint has been made by an Applicant under this clause 13.2), in which case the ITR Administrator will notify all Applicants of the issue of the public interest certificate.
- (g) Without limiting the operation of the Judicial Review Act, if an Applicant makes a complaint under this clause 13.2 and at the time of the complaint no public interest certificate is in force in relation to this registration of interest process, the Commonwealth may suspend this registration of interest process in accordance with section 20 of the Judicial Review Act by notice to all Applicants.

13.3 Definitions

For the purposes of the Invitation to Register Interest:

- (a) **Covered Procurement** has the meaning in the Judicial Review Act;
- (b) **Judicial Review Act** means the *Government Procurement (Judicial Review) Act 2018* (Cth); and
- (c) **Relevant Commonwealth Procurement Rules** has the meaning in the Judicial Review Act.

14. WORKPLACE GENDER EQUALITY

- (a) The Applicant's attention is drawn to the Workplace Gender Equality Procurement Principles (the **Principles**), which impose obligations on the Commonwealth to obtain a letter of compliance from any tenderer who is a "Relevant Employer" as defined in the *Workplace Gender Equality Act 2012* (Cth) (**WGE Act**). The Australian Government has adopted a policy of not purchasing goods or services from suppliers who do not comply with their obligations, if any, under the WGE Act. More information about the requirements arising under the Principles and the WGE Act is available from the Workplace Gender Equality Agency (**WGEA**) at <https://www.wgea.gov.au/what-we-do/compliance-reporting/wgea-procurement-principles>.
- (b) As part of its tender, if applicable, the tenderer will be required to provide the letter referred to in paragraph (a).
- (c) At the award date of the contract, the successful tenderer must comply with the WGE Act if it applies to the successful tenderer.

15. EMPLOYEE ENTITLEMENTS

- (a) The Applicant should note that it is a requirement of the Commonwealth Procurement Rules that the Commonwealth must not enter into a contract with a tenderer who has a judicial decision against it (not including a decision under appeal) relating to employee entitlements and who has not satisfied any resulting order (e.g. where the entitlement remains unpaid). A judicial decision is one made by any court, tribunal or other body with authority to make a decision or determination which is binding on the Applicant.
- (b) As part of its tender, if applicable, the tenderer will be required to provide a declaration confirming that the tenderer does not have any judicial decision against it (not including a decision under appeal) relating to employee entitlements where the resulting order remains unsatisfied.
- (c) At the award date of the contract, the successful tenderer must not have any judicial decision against it (not including a decision under appeal) relating to any employee entitlements where the resulting order remains unsatisfied.

16. INDUSTRY BRIEFING

- (a) The Commonwealth may conduct one or more industry briefings (including any site visits) in relation to the Invitation to Register Interest, the registration of interest process, the contractor's activities, the works and the project. If an industry briefing will be conducted, the ITR Administrator will notify the Applicant of the details of the industry briefing, including:

- (i) the scheduled date, time and location (in person and/or by videoconference) for the industry briefing;
 - (ii) where the industry briefing is to be held in person, the maximum number of Applicant personnel (whether employees, subcontractors, consultants or otherwise) who may attend the industry briefing;
 - (iii) the time and date by which the Applicant must notify the ITR Administrator if it wishes to attend the industry briefing; and
 - (iv) any other information required by the ITR Administrator.
- (b) If the Applicant wishes to attend the industry briefing as notified by the ITR Administrator under paragraph (a), it must notify the ITR Administrator by email no later than the time and date specified in the ITR Administrator's notice under paragraph (a), providing details of the Applicant, the full names and addresses of all Applicant personnel proposed to attend and all other information required by the ITR Administrator in its notice under paragraph (a).
- (c) The Commonwealth may (in its absolute discretion):
 - (i) limit or restrict the number of Applicant personnel; or
 - (ii) exclude any or all Applicant personnel from,
attending the industry briefing for any reason, including if the Applicant:
 - (iii) exceeds the maximum number of Applicant personnel specified under paragraph (a);
 - (iv) fails to comply with paragraph (b); or
 - (v) substitutes or replaces Applicant personnel after the time and date specified in paragraph (b).
- (d) All industry briefings will be conducted for the purpose of providing background information only. The Applicant must not in any way rely upon the industry briefing (or any industry briefing materials provided in accordance with paragraph (e)(i), if applicable) for the purposes of preparing its Registration of Interest and if it is invited to lodge a tender for the contractor's activities and the works, preparing, amending or negotiating its tender, or entering into any contract with the Commonwealth.
- (e) The Applicant:
 - (i) may, at the discretion of the ITR Administrator, be provided with copies of industry briefing materials (including presentations) as an information document; and
 - (ii) is not permitted to take photographs or other electronic recordings of any industry briefing (including any presentation, site visit or inspection).
- (f) Without limiting any other provision of the Invitation to Register Interest:
 - (i) subject to the Commonwealth Procurement Rules, neither the Commonwealth nor the ITR Administrator is obliged to respond to any or all questions, enquiries or other matters notified during the industry briefing; and
 - (ii) the Commonwealth may (in its absolute discretion) publish or issue addenda under clause 4(b) or information documents to address any matters arising out of or in connection with the industry briefing.

17. WHS ACCREDITATION SCHEME

Clause 17 does apply. Clause 17 applies unless stated that it does not apply.

The Applicant's attention is drawn to the WHS Accreditation Scheme described in section 43 of the *Federal Safety Commissioner Act 2022* (Cth). More information on the WHS Accreditation Scheme is available at www.fsc.gov.au or by contacting the Federal Safety Commissioner on 1800 652 500.

In accordance with section 43(4) of the *Federal Safety Commissioner Act 2022* (Cth) the Commonwealth must not fund WHS Accreditation Scheme Building Work unless:

- (a) contracts for the WHS Accreditation Scheme Building Work will be entered into with builders who are accredited persons; and
- (b) at the time of funding, the Commonwealth takes appropriate steps to ensure that builders will be accredited persons when they carry out WHS Accreditation Scheme Building Work.

If the Applicant is invited to lodge a tender for the contractor's activities and the works and a tender is lodged:

- (c) on the basis the tenderer will carry out the WHS Accreditation Scheme Building Work, the tenderer must hold WHS Accreditation Scheme accreditation; or
- (d) on a Joint Bid Basis (as defined under clause 8) and:
 - (i) both joint bid parties will carry out WHS Accreditation Scheme Building Work, both joint bid parties must hold WHS Accreditation Scheme accreditation; or
 - (ii) only one joint bid party will carry out WHS Accreditation Scheme Building Work, that party must hold WHS Accreditation Scheme accreditation; or
 - (iii) one joint bid party will carry out WHS Accreditation Scheme Building Work as an unaccredited builder (and one joint bid party is accredited), the joint bid parties must have obtained written confirmation from the Federal Safety Commissioner confirming the requirements of section 26(g) of the *Federal Safety Commissioner (Accreditation Scheme) Rules 2023* (Cth) have been met in relation to the project,

on or prior to the nominated award date of the contract.

The successful tenderer will also be required to:

- (e) comply with all conditions of accreditation under the WHS Accreditation Scheme; and
- (f) (where applicable) maintain accreditation at all times whilst WHS Accreditation Scheme Building Work is being carried out.

For the purposes of the Invitation to Register Interest:

- (g) **WHS Accreditation Scheme** means the Work Health and Safety Accreditation Scheme in force pursuant to section 43 of the *Federal Safety Commissioner Act 2022* (Cth); and
- (h) **WHS Accreditation Scheme Building Work** has the meaning in section 6 of the *Federal Safety Commissioner Act 2022* (Cth).

18. INDIGENOUS PROCUREMENT POLICY

The Applicant's attention is drawn to the Indigenous Procurement Policy available at <https://www.niaa.gov.au/indigenous-affairs/economic-development/indigenous-procurement-policy-ipp> (**Indigenous Procurement Policy**). The purpose of the Indigenous Procurement Policy is to stimulate Indigenous entrepreneurship and business development and provide Indigenous Australians with more opportunities to participate in the economy. More information on Indigenous Enterprises (as defined in the Indigenous Procurement Policy) is available at www.supplynation.org.au and in the Indigenous Procurement Policy. The Applicant is requested to note that using Indigenous Enterprises may involve the direct engagement of Indigenous Enterprises as subcontractors, suppliers or otherwise or further along the supply chain.

Specific requirements apply to High Value Contracts and also where the procurement involves a High Value Contract and a Remote Area Contract (both as defined in the Indigenous Procurement Policy).

If the Applicant is invited to lodge a tender for the contractor's activities and the works:

- (a) the procurement does not involve a Remote Area Contract;
- (b) it will be required to address the Indigenous Procurement Policy (including the mandatory minimum requirements for the Indigenous Procurement Policy) in its tender; and
- (c) if it is the successful tenderer, it will be required to comply with the requirements of the Indigenous Procurement Policy.

19. LOCAL INDUSTRY CAPABILITY

Local industry participation is an expected outcome of Commonwealth expenditure. This expectation builds on the Commonwealth Procurement Rules, which require procurement practices that do not unfairly discriminate against Small and Medium Enterprises (SMEs) and provide appropriate opportunities for SMEs to compete for Commonwealth funded work.

If the Applicant is invited to lodge a tender for the contractor's activities and the works:

- (a) it will be requested to prepare and lodge a draft Local Industry Capability Plan in its tender; and
- (b) if it is the successful tenderer, it will be required to comply with its finalised Local Industry Capability Plan.

The Local Industry Capability Plan must:

- (c) outline the tenderer's approach to ensuring that full, fair and reasonable opportunity is afforded to local industry (including Australian veterans) in the delivery of the project; and
- (d) detail the tenderer's approach to the market and intended Australian industry engagement locally (including with Australian veterans), regionally, state or territory wide and nationally for the project.

20. INFORMATION SECURITY

The Applicant's attention is drawn to the Commonwealth's requirements in respect of Confidential Information including any Sensitive and Classified Information (each as defined in the Disclaimer and Confidentiality Agreement, Tender Conditions forming part of the Tender Documents and Conditions of Contract for the Defence Head Contract (GMP)). If the Applicant:

- (a) is invited to lodge a tender for the contractor's activities and the works, it will be required to comply with the requirements in the Disclaimer and Confidentiality Agreement and Tender Documents; and
- (b) is the successful tenderer, it will be required to comply with the requirements in the contract.

21. FINANCIAL VIABILITY

21.1 Solvency Statement and Financial Information

Without limiting clause 2(b), at any time before the award date of the contract, the ITR Administrator may (in its absolute discretion) notify the Applicant that the Commonwealth requires the Applicant to provide to the ITR Administrator (or the independent financial adviser engaged by the Commonwealth and notified to the Applicant under clause 21.2, if specified in the request) by email by the time and date specified in the notice, any of the following information or documents:

- (a) a duly executed solvency statement in the form attached to the ITR Administrator's notice;
- (b) financial reports, accounts and records as specified (including any which have been subject to third party audit) for up to three prior financial years;
- (c) if the Applicant is a foreign individual, firm, corporation or otherwise, details of all assets and liabilities in Australia;

- (d) if the Applicant is a company and forms part of a corporate group, details of the structure of the corporate group and any financial guarantee or assurance arrangements or inter-company loans between members of that corporate group;
- (e) details of any pending, threatened or actual litigation, arbitration or other forms of dispute resolution involving the Applicant;
- (f) details of all securities provided by the Applicant (including details of the type of security, the issuer of the security, details as to whom the security has been provided, the assets secured and the amounts secured), any contingent liabilities and all finance facilities that the Applicant has in place;
- (g) full contact details for its financial representative (being, for example, the Applicant's chief financial officer, financial controller or other officer or employee with primary responsibility for managing the financial affairs of the Applicant) for the purpose of providing further financial information and documents and answering questions; and
- (h) any additional financial information or documents specified in the notice,

for the purpose of assessing whether or not the Applicant has the necessary financial viability to perform the contractor's activities and otherwise meet its obligations under the contract if it is the successful tenderer.

The Applicant acknowledges that:

- (i) if the Registration of Interest is lodged on a Joint Bid Basis, the Applicant must provide the information or documents in clause 21.1 for each joint bid party (as applicable); and
- (j) the ITR Administrator may (in its absolute discretion) make a request under clause 21 to one or more Applicants without making such a request to all Applicants.

21.2 Independent Financial Adviser

The Applicant acknowledges that:

- (a) the Commonwealth may (in its absolute discretion) engage an independent financial adviser:
 - (i) to assess whether or not the Applicant has the necessary financial viability to perform the contractor's activities and otherwise meet its obligations under the contract if it is the successful tenderer (including an assessment of the information or documents provided by the Applicant under clause 21.1 or otherwise); and
 - (ii) in respect of one or more Applicants without engaging the independent financial adviser in respect of all Applicants;
- (b) the independent financial adviser may (in its absolute discretion) contact the financial representative nominated by the Applicant (whether in response to a request under clause 21.1 or otherwise) directly for the purpose of conducting a financial viability assessment under paragraph (a)(i); and
- (c) it will ensure that its financial representative co-operates with and does everything necessary to assist the Commonwealth, the ITR Administrator and the independent financial adviser in the financial viability assessment process.

If the Commonwealth engages an independent financial adviser, the ITR Administrator will notify the Applicant of the identity of the independent financial adviser.

22. STRATEGIC NOTICE EVENTS

22.1 Applicant's Warranty

The Applicant warrants that, at the time of lodging its Registration of Interest, it is not aware of any Strategic Notice Event.

22.2 Applicant to Give Notice

If, at any time after lodging its Registration of Interest, the Applicant becomes aware of any Strategic Notice Event, the Applicant must, as soon as reasonably practicable, notify the ITR Administrator by email, providing details, to the extent such details are known by or reasonably available to the Applicant, of:

- (a) the Strategic Notice Event, including:
 - (i) whether the Applicant considers that it is a Material Change, Defence Strategic Interest Issue or a Significant Event;
 - (ii) the date or dates on or during which the Strategic Notice Event occurred and the date on which the Applicant became aware of the Strategic Notice Event; and
 - (iii) whether any of the Applicant's key people, other personnel proposed to be engaged in connection with the contractor's activities under the contract or any officers or employees of any proposed subcontractors were involved; and
- (b) the steps which the Applicant has taken (or will take) to prevent, end, avoid, mitigate, resolve or otherwise manage the risk of any adverse effect of the Strategic Notice Event on the interests of the Commonwealth.

The Applicant must continue to comply with this clause 22.2 following a notification from the Commonwealth under clause 6(a)(ii) that its Registration of Interest was successful.

22.3 Commonwealth Rights Upon Occurrence of Strategic Notice Event

Without limiting any other provision of the Invitation to Register Interest, if:

- (a) the Applicant:
 - (i) notifies the ITR Administrator under clause 22.2; or
 - (ii) has given a false warranty in any respect under clause 22.1 or has failed to strictly comply with clause 22; or
- (b) the Commonwealth otherwise considers (in its absolute discretion) that there exists (or is likely to exist) a Strategic Notice Event,

the Commonwealth may (in its absolute discretion) and either itself, or through the ITR Administrator, do any one or more of the following:

- (c) notify the Applicant that it is required to provide further information, documents or evidence in relation to, and otherwise clarify, the:
 - (i) nature and extent of the Strategic Notice Event to the extent such information, documents or evidence are known or reasonably available to the Applicant; and
 - (ii) steps which the Applicant has taken (or will take) to prevent, end, avoid, mitigate, resolve or otherwise manage the risk of any adverse effect of the Strategic Notice Event on the interests of the Commonwealth,within 3 business days of the request (or longer period agreed in writing by the Commonwealth); and
- (d) regardless of whether or not the Commonwealth has notified the Applicant under paragraph (c), notify the Applicant that the Applicant:
 - (i) is specifically excluded from participating in the registration of interest process and its Registration of Interest will not be evaluated (or continue to be evaluated);
 - (ii) may continue to participate in the registration of interest process, whether with or without such conditions as the Commonwealth thinks fit (in its absolute discretion); or

- (iii) is specifically excluded from participating in the tender process and its tender will not be evaluated (or continue to be evaluated).

22.4 Release

The Applicant must bear, and releases the Commonwealth in respect of, all costs, expenses, losses, damages or liabilities suffered or incurred by the Applicant or any other person or entity arising out of or in connection with the Strategic Notice Event or the exercise of any of the ITR Administrator's or the Commonwealth's absolute discretions under clause 22 or a corresponding clause in respect of any other Applicant.

22.5 Applicant's Compliance

- (a) Nothing in this clause 22 requires the Applicant to act in any manner or disclose any information which would:
 - (i) breach an obligation of confidentiality that existed prior to the date the Strategic Notice Event occurred, that is owed to an unrelated third party;
 - (ii) cause the Applicant to breach any law or regulation or contractual obligation regarding privacy or security (in Australia or outside of Australia);
 - (iii) have the effect of waiving legal professional privilege (or any equivalent privilege in Australia or outside of Australia) in relation to the information; or
 - (iv) breach the rules of a stock exchange or any similar body on which the Applicant, or any related body corporate of the Applicant, is listed, which require the information to be first disclosed to the stock exchange or body. In this case, the Applicant must disclose the information to the ITR Administrator promptly after disclosure is made to the stock exchange or body.
- (b) Notwithstanding any restriction that may apply in respect of specific information, such as that described in paragraph (a), the Applicant must use reasonable endeavours to make any disclosures and take reasonable steps to ensure that the overarching intent of this clause 22 is achieved.

22.6 Definitions

For the purposes of this Invitation to Register Interest:

- (a) **Change of Control** means where a person who did not (directly or indirectly) effectively Control (as defined in the Conditions of Contract for the Defence Head Contract (GMP)) the Applicant at the date of submission of its Registration of Interest, either alone or together with others, acquires Control of the Applicant;
- (b) **Defence Strategic Interest Issue** means any issue arising out of or in relation to the Registration of Interest, the Applicant or any proposed subcontractor (or any related body corporate of the Applicant or any proposed subcontractor) that involves an actual, potential or perceived risk of an adverse effect on the national security interests of the Commonwealth including arising from any breach by the Applicant of its obligations in respect of compliance with all applicable laws and the Information Security Requirements;
- (c) **Information Security Requirements** means the:
 - (i) Australian Government's Protective Security Policy Framework available at <https://www.protectivesecurity.gov.au/>;
 - (ii) Australian Government's Information Security Manual available at <https://www.cyber.gov.au/ism>; and
 - (iii) Defence Security Principles Framework dated 19 July 2024 available at <https://www.defence.gov.au/business-industry/industry-governance/defence-security-principles-framework>,

each as amended or replaced from time to time;

- (d) **Material Change** means any actual, potential or perceived material change to the circumstances of the Applicant, including any change:
- (i) arising out of or in connection with:
 - A. a Change of Control;
 - B. an Insolvency Event (as defined in the Conditions of Contract for the Defence Head Contract (GMP), except that a reference to the "Contractor" will be read as a reference to the Applicant); or
 - C. the Applicant's financial viability, availability, capacity or ability to perform the contractor's activities and otherwise meet its obligations under the contract; or
 - (ii) which affects the truth, completeness or accuracy of:
 - A. if the Applicant has lodged a registration of interest, the Registration of Interest; or
 - B. any other information, documents, evidence or clarifications provided by the Applicant to the Commonwealth arising out of or in connection with its Registration of Interest or the registration of interest process;
- (e) **Significant Event** means:
- (i) any adverse comments or findings made by a court, commission, tribunal or other statutory or professional body regarding the conduct or performance of the Applicant or its subcontractors (or any officers, employees or agents of any of them) that impacts or could be reasonably perceived to impact on their professional capacity, capability, fitness or reputation; or
 - (ii) any other significant matters, including the commencement of legal, regulatory or disciplinary action involving the Applicant or its subcontractors (or any officers, employees or agents of any of them) that may adversely impact on compliance with Commonwealth policy and legislation or the Commonwealth's reputation; and
- (f) **Strategic Notice Event** means:
- (i) a Material Change;
 - (ii) a Defence Strategic Interest Issue;
 - (iii) a Significant Event; or
 - (iv) any known or suspected Fraud or Corruption (each as defined in the Conditions of Contract for the Defence Head Contract (GMP)) which is occurring or has occurred in connection with the registration of interest process.

23. STATEMENT OF TAX RECORD

- (a) Clause 23 does apply. Clause 23 applies unless stated that it does not apply.
- (b) The Applicant's attention is drawn to the Shadow Economy Procurement Connected Policy, which imposes obligations on the Commonwealth to obtain from applicants valid and satisfactory STRs. More information about the requirements arising under the Shadow Economy Procurement Connected Policy is available from the Department of Treasury at <https://treasury.gov.au/policy-topics/economy/shadow-economy/procurement-connected-policy>.
- (c) As part of its Registration of Interest, the Applicant must complete and lodge Schedule E - Statement of Tax Record, which includes:

- (i) providing all of the valid and satisfactory STRs required for the Applicant's entity type under (and as set out in) Schedule E - Statement of Tax Record; and
- (ii) making the declaration in the form set out in item B.

The Applicant should note that this is a **minimum form and content requirement** for its Registration of Interest under **clause 3.1(b) of the Invitation to Register Interest**.

(d) For the purposes of this clause 23 and Schedule E - Statement of Tax Record:

- (i) an STR is taken to be:
 - A. **satisfactory** if the STR states that the entity has met the conditions, as set out in the Shadow Economy Procurement Connected Policy, of having a satisfactory engagement with the Australian tax system; and
 - B. **valid** if the STR has not expired as at the date on which the STR is required to be provided or held;
- (ii) **Consolidated Group** means a Consolidated Group or MEC (Multiple Entry Consolidated) group as those terms are defined in section 995-1 of the *Income Tax Assessment Act 1997* (Cth);
- (iii) **GST Group** means a GST group formed in accordance with Division 48 of the GST Legislation;
- (iv) **GST Legislation** means *A New Tax System (Goods and Services Tax) Act 1999* (Cth) and any related Act imposing such tax or legislation that is enacted to validate, recapture or recoup such tax;
- (v) **Shadow Economy Procurement Connected Policy** means the Shadow Economy Procurement Connected Policy – Increasing the Integrity of Government Procurement – October 2024, as amended or replaced from time to time; and
- (vi) **Statement of Tax Record** or **STR** has the meaning given in the Shadow Economy Procurement Connected Policy.

24. PAYMENT TIMES PROCUREMENT CONNECTED POLICY

The Applicant's attention is drawn to the Payment Times Procurement Connected Policy (**PT PCP**) (being the procurement connected policy available at <https://treasury.gov.au/publication/p2021-183909>). Where the PT PCP applies:

- (a) successful Applicants will be required to disclose at time of tender whether they are a "Reporting Entity" (as defined by the *Payment Times Reporting Act 2020* (Cth)); and
- (b) to the extent that the successful tenderer discloses that it is a "Reporting Entity" in accordance with paragraph (a), specific additional contractual obligations relating to the PT PCP will apply.

25. ENVIRONMENTALLY SUSTAINABLE PROCUREMENT POLICY

- (a) The Applicant's attention is drawn to the Environmentally Sustainable Procurement Policy (being the policy available at <https://www.dcccew.gov.au/environment/protection/waste/sustainable-procurement/environmentally-sustainable-procurement-policy>). The Environmentally Sustainable Procurement Policy aims to improve environmental sustainability across three focus areas – climate, the environment and circularity.
- (b) If the Applicant is invited to lodge a tender for the contractor's activities and the works:
 - (i) it will be required to address the Environmentally Sustainable Procurement Policy in, and prepare and lodge a "Supplier Environmental Sustainability Plan" (which includes an "ESP Policy Commitment Report") as part of, its tender; and

- (ii) if it is the successful tenderer, it will be required to comply with the requirements of the Environmentally Sustainable Procurement Policy and to comply with, and report against, its "Supplier Environmental Sustainability Plan" for the term of the contract.

26. AUSTRALIAN SKILLS GUARANTEE

- (a) The Applicant's attention is drawn to the Australian Skills Guarantee Procurement Connected Policy (being the procurement connected policy available at <https://www.dewr.gov.au/australian-skills-guarantee>). The Australian Skills Guarantee Procurement Connected Policy aims to address gender segregation and acute skills shortages by introducing skills guarantee targets for Major Construction Projects and Flagship Construction Projects (both as defined in the Australian Skills Guarantee Procurement Connected Policy).
- (b) Specific requirements apply to Flagship Construction Projects (as defined in the Australian Skills Guarantee Procurement Connected Policy).
- (c) If the Applicant is invited to lodge a tender for the contractor's activities and the works:
 - (i) the project will be a Major Construction Project for the purposes of the Australian Skills Guarantee Procurement Connected Policy;
 - (ii) it will be required to address the Australian Skills Guarantee Procurement Connected Policy in its tender; and
 - (iii) if it is the successful tenderer, it will be required to comply with the requirements of the Australian Skills Guarantee Procurement Connected Policy.

REGISTRATION OF INTEREST FORM

FOR

ATM ID: AZ6626

PROJECT NO: ESTS4000PH6

**PROJECT NAME: FACILITIES TO SUPPORT HOBART CLASS
DESTROYER (DDG) AEGIS COMBAT SYSTEM ENHANCMENT AT
NAVY TRAINING SYSTEMS CENTRE RANDWICK AND DEFENCE
PLAZA SYDNEY**

APPLICANT DETAILS

Full Name

ABN/ACN (if applicable)

Street address (not PO Box)

Email address

Builders' registration or licence number (if applicable)

Name of contact person

Contact person - telephone (office)

Contact person - telephone (mobile)

REGISTRATION BY APPLICANT

- (a) We submit our Registration of Interest in accordance with the Invitation to Register Interest and the enclosed Schedules.
- (b) We confirm that our Registration of Interest has been lodged in accordance with the Invitation to Register Interest, including:

- (i) the lodgement requirements in clause 3.1(a) of the Invitation to Register Interest;
 - (ii) the minimum form and content requirements in clause 3.1(b) of the Invitation to Register Interest; and
 - (iii) the conditions for participation requirements (if any) in clause 3.1(c) of the Invitation to Register Interest.
- (c) In consideration of the Commonwealth promising to pay us the sum of One Dollar (\$1.00) we unconditionally accept and agree to be bound by the Invitation to Register Interest and this Registration of Interest Form, including:
 - (i) in respect of the consequences of a non-conforming registration of interest as set out in the Invitation to Register Interest, including in clause 3.2 of the Invitation to Register Interest; and
 - (ii) providing the acknowledgements, agreements, releases, indemnities, warranties and other assurances as set out in the Invitation to Register Interest and this Registration of Interest Form.
- (d) We acknowledge and agree that:
 - (i) the entire registration of interest process (**Process**) is being conducted solely for the benefit of the Commonwealth;
 - (ii) notwithstanding subparagraph (i), we are submitting to the Process because we consider that this represents a valuable commercial opportunity for us;
 - (iii) we release the Commonwealth in respect of any claim that we may have for costs, expenses, losses, damages or liabilities suffered or incurred by us arising out of or in connection with the Process, the rejection of, failure to evaluate or failure to accept our Registration of Interest, any failure to comply with the Invitation to Register Interest, anything which the Commonwealth states or does or omits to state or do in arising out of or in connection with any industry briefing or presentation under clause 16 of the Invitation to Register Interest, any debrief, any variation or suspension of the Process or any discontinuance or termination of the Process, except to the extent of any compensation awarded under the Judicial Review Act;
 - (iv) if we are a shortlisted Applicant, our participation in the tender process will be governed by, is subject to, and that we must comply with, the Tender Documents upon our receipt of those Tender Documents;
 - (v) the Commonwealth is proceeding with the Process strictly on the basis of, and in reliance upon, the acknowledgements and releases set out above; and
 - (vi) we indemnify the Commonwealth in respect of all costs, expenses, losses, damages and liabilities suffered or incurred by the Commonwealth arising out of or in connection with any breach of any acknowledgement or release given by us under this paragraph (d).
- (e) We acknowledge and agree that we will at all times act consistently with the Commonwealth Supplier Code of Conduct (available at <https://www.finance.gov.au/government/procurement/commonwealth-supplier-code-conduct/commonwealth-supplier-code-conduct>) and will otherwise ensure that our officers' and employees' dealings with Commonwealth personnel are at all times conducted in a professional, respectful and courteous manner and without harassment.
- (f) We acknowledge that each party constituting the Applicant is bound jointly and severally by this Registration of Interest.
- (g) In executing the Registration of Interest Form, if clause 23 of the Invitation to Register Interest applies, we make the declaration and give the acknowledgement set out in item B of Schedule E - Statement of Tax Record.

The Applicant is requested to provide:

- (h) a Registration of Interest Form executed by a person or persons with full authority to bind the Applicant for the purposes of the Registration of Interest, executed by each entity if the Applicant consists of more than one entity (and provide evidence of the full authority of the person or persons executing the Registration of Interest Form);
- (i) the full name and address of the entity registering its interest;
- (j) full details of the entity registering its interest's corporate structure, including trading or business names, related bodies corporate, details of its registration and place of business and details of relevant trust or fiduciary arrangements; and
- (k) details of:
 - (i) the basis on which the Applicant gives the warranty under clause 22.1 of the Invitation to Register Interest; and
 - (ii) to the extent applicable, the steps which the Applicant has taken to prevent, end, avoid, mitigate, resolve or otherwise manage the risk of any Strategic Notice Event on the interests of the Commonwealth (if applicable).

[INSERT DATE] [COMPLETE ONE OF THE FOLLOWING SIGNING BLOCKS, OR INSERT AS APPROPRIATE, THEN DELETE ANY SIGNING BLOCK NOT USED]

[S 127 OF CORPORATIONS ACT]

Executed by [INSERT NAME] in accordance with section 127 of the *Corporations Act 2001* (Cth):

Signature of director

Full name of director who states that they are a director of [INSERT NAME]

Signature of company secretary/director *[delete position as appropriate]*

Full name of company secretary/director *[delete position as appropriate]* who states that they are a company secretary/director *[delete position as appropriate]* of [INSERT NAME]

[OR - AUTHORISED SIGNATORY OF COMPANY]

Signed for and on behalf of **[INSERT NAME]** by its authorised signatory in the presence of:

Signature of witness

Signature of authorised signatory

Full name of witness

Full name of authorised signatory

[THESE ARE EXAMPLE EXECUTION CLAUSES ONLY. IF SUBMITTING ON A JOINT BID BASIS, APPLICANTS ARE REMINDED OF THE REQUIREMENTS IN CLAUSE 8.2 OF THE INVITATION TO REGISTER INTEREST, INCLUDING THAT:

- 1. A SINGLE REGISTRATION OF INTEREST FORM SHOULD BE COMPLETED AND LODGED ON BEHALF OF ALL ENTITIES, SEPARATELY EXECUTED BY EACH ENTITY; AND**
- 2. THE APPLICANT SHOULD PROVIDE ANY INFORMATION IT CONSIDERS RELEVANT TO ITS PROPOSED JOINT BID ARRANGEMENTS AND EACH ENTITY COMPRISING THE APPLICANT]**

[THE APPLICANT IS TO ENSURE THAT THE REGISTRATION OF INTEREST FORM IS COMPLETE, ACCURATE, DULY EXECUTED AND VALID]

SCHEDULE A

PROPOSED RESOURCES

To assist the Applicant to demonstrate its ability to satisfy the evaluation criterion described under clause 2(a)(i) of the Invitation to Register Interest and to assist the Commonwealth in evaluating its Registration of Interest, the Applicant is requested to provide details of its proposed key people for the contractor's activities and the works, including the key people for the roles described in the table below. Such information should include, in respect of each key person:

- (a) their current and proposed future location (including identifying whether or not the key person is located within the general geographical location/s of the works and, where not, details of how the key person will perform the relevant part of the contractor's activities and the works in the location/s of the works);
- (b) details of how the key person is proposed to perform the relevant part of the contractor's activities and the works, including their proposed scope of duties;
- (c) their current and potential future workload, capacity and availability and involvement in other current and potential further projects, and how the key person is proposed to perform the relevant part of the contractor's activities and the works in light of the key person's commitments to those other projects;
- (d) details of the key person's experience relevant to their proposed scope of duties; and
- (e) their relevant qualifications / licences / accreditations / certifications / memberships of professional bodies / associations (or similar).

Such details should be provided in table format as set out below.

ROLE AND ENTITY	NAME	LOCATION (CURRENT AND PROPOSED) AND HOW MANAGED	DETAILS OF PROPOSED INVOLVEMENT AND PROPOSED SCOPE OF DUTIES	CURRENT AND POTENTIAL FUTURE WORKLOAD, CAPACITY, AVAILABILITY AND HOW MANAGED	EXPERIENCE RELEVANT TO SCOPE OF DUTIES	RELEVANT QUALIFICATIONS ETC
CONTRACTOR'S REPRESENTATIVE						
PROJECT DIRECTOR / CONSTRUCTION MANAGER						
PROJECT MANAGER						
SITE MANAGER						
QUALITY MANAGER						
LOCAL INDUSTRY CAPABILITY MANAGER						
SENIOR CONTRACTS MANAGER/ SUBCONTRACTS MANAGER						
CONTRACTS MANAGER/ SUBCONTRACTS ADMINISTRATOR						

ROLE AND ENTITY	NAME	LOCATION (CURRENT AND PROPOSED) AND HOW MANAGED	DETAILS OF PROPOSED INVOLVEMENT AND PROPOSED SCOPE OF DUTIES	CURRENT AND POTENTIAL FUTURE WORKLOAD, CAPACITY, AVAILABILITY AND HOW MANAGED	EXPERIENCE RELEVANT TO SCOPE OF DUTIES	RELEVANT QUALIFICATIONS ETC
COMMISSIONING AND HANDOVER MANAGER						
PLANNER/ PROGRAMMER						
WHS MANAGER						
SECURITY MANAGER						
[APPLICANT TO INSERT ADDITIONAL ROLES INVOLVED IN THE CONTRACTOR'S ACTIVITIES AND THE WORKS]						

The Applicant is permitted to submit the information requested in this Schedule A - Proposed Resources in A3 or landscape format.

SCHEDULE B

PREVIOUS PERFORMANCE

To assist the Applicant to demonstrate its ability to satisfy the evaluation criterion described under clause 2(a)(ii) of the Invitation to Register Interest and to assist the Commonwealth in evaluating its Registration of Interest, the Applicant is requested to provide details of previous performance:

- (a) by reference to any relevant projects being carried out or completed in the 10 years prior to the ATM Close Date and ATM Close Time; and
- (b) up to a maximum of 5 projects,

in table format as set out below. In selecting relevant projects, the Applicant should have regard to the delivery method in the Defence Head Contract (GMP).

RELEVANT PROJECTS BEING CARRIED OUT OR COMPLETED IN THE TEN (10) YEARS PRIOR TO THE ATM CLOSE DATE AND ATM CLOSE TIME UP TO A MAXIMUM OF FIVE (5) PROJECTS

	[PROJECT AND LOCATION]	[PROJECT AND LOCATION]	[ETC]
CLIENT			
DETAILS OF THE PROJECT, INCLUDING VALUE AND DURATION			
CURRENT STATUS OF THE PROJECT			
NATURE AND EXTENT OF INVOLVEMENT OF THE APPLICANT			
KEY RISKS AND ISSUES ENCOUNTERED AND THE APPLICANT'S APPROACH TO ADDRESSING THOSE			
DETAILS OF INNOVATIONS AND THE BASIS UPON WHICH THE APPLICANT ADDED VALUE TO THE PROJECT			
BASIS UPON WHICH THE PROJECT DEMONSTRATES THE APPLICANT'S EXPERIENCE AND ABILITY TO PERFORM THE CONTRACTOR'S ACTIVITIES			
BASIS UPON WHICH THE PROJECT DEMONSTRATES THE APPLICANT'S EXPERIENCE AND ABILITY TO DELIVER WOL OUTCOMES FOR THE BENEFIT OF THE PROJECT			
DETAILS OF ANY MATERIAL NON-COMPLIANCE/S WITH THE CONTRACT FOR THE PROJECT, INCLUDING IN RESPECT OF TIME, COST AND QUALITY OBLIGATIONS			
CLIENT REFEREE - NAME AND CURRENT TELEPHONE NUMBER			

The Applicant is permitted to lodge the information requested in this Schedule B - Previous Performance in A3 or landscape format.

If the Registration of Interest is lodged on a Joint Bid Basis the maximum number of projects listed for the Applicant to provide details of in the above table(s) applies to the Joint Bid parties cumulatively.

SCHEDULE C

INFORMATION SECURITY

The Applicant's attention is drawn to clause 20 of the Invitation to Register Interest and to the Defence Industry Security Program more particularly described at <http://www.defence.gov.au/dsvs/industry> (**DISP**). To assist the Applicant to demonstrate its ability to satisfy the evaluation criterion under clause 2(a)(iii) of the Invitation to Register Interest and to assist the Commonwealth in evaluating its Registration of Interest, the Applicant is requested to:

- (a) confirm whether or not it currently holds DISP membership and, if so, provide details of such membership in item A; and
- (b) if the Applicant **does not** currently hold DISP membership, complete the Questionnaire in item B.

A DEFENCE INDUSTRY SECURITY PROGRAM

Does the Applicant currently hold DISP membership?

☐ YES ☐ NO

If Yes, please provide evidence of such membership (in the form of a certificate issued by the Commonwealth) together with details of the relevant level held for each of the following Security Domains:

- (a) Governance
[INSERT]
- (b) Personnel Security
[INSERT]
- (c) Physical Security
[INSERT]
- (d) Information / Cyber Security
[INSERT]

B QUESTIONNAIRE

The Applicant should only complete this item B in circumstances where the Applicant has indicated in item A above that it does not currently hold DISP membership.

- 1. Do the Applicant's information security procedures, policies and measures comply with the requirements:
 - (a) if it is invited to lodge a tender for the contractor's activities and the works, in the Disclaimer and Confidentiality Agreement and the Tender Documents; and
 - (b) if it is the successful tenderer, in the Conditions of Contract,in respect of Confidential Information (including any Sensitive and Classified Information)?

☐ YES ☐ NO

If No, please provide details:

[INSERT]

If No, please provide details of the steps that the Applicant will take to ensure compliance with these requirements, including timeframes.

[INSERT]

2. Do the Applicant's information security procedures, policies and measures extend to preventing, detecting, reporting on, responding to and closing out:

- (a) new and emerging threats to information security procedures, policies and measures; and
(b) hardware or software malfunctions,

in respect of Confidential Information (including any Sensitive and Classified Information)?

☐ YES ☐ NO

If No, please provide details:

[INSERT]

3. Has the Applicant been the subject of any notices, investigations, proceedings, consequences or sanctions in relation to an unauthorised disclosure of confidential, sensitive or classified information during the past 5 years?

☐ YES ☐ NO

If Yes, please provide details:

[INSERT]

If Yes, is the Applicant fully complying with the outcomes of such investigations, proceedings, consequences or sanctions?

☐ YES ☐ NO

If No, please provide details:

[INSERT]

4. Has the Applicant been subject to a hardware and software malfunction, malicious code or other Security or Confidentiality Incident (as defined in the Conditions of Contract for the Defence Head Contract (GMP)) in the past 5 years?

☐ YES ☐ NO ☐ NOT APPLICABLE

If Yes, please provide details of how the Applicant managed such incident:

[INSERT]

SCHEDULE D

CONDITIONS FOR PARTICIPATION

The Applicant's attention is drawn to clause 3.1(c) of the Invitation to Register Interest.

The conditions for participation applicable to this invitation to register interest process are that the Applicant must:

- None stated.
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SCHEDULE E

STATEMENT OF TAX RECORD

The Applicant's attention is drawn to clauses 3.1(b) and 23 of the Invitation to Register Interest.

As noted in clause 23 of the Invitation to Register Interest, this Schedule E - Statement of Tax Record only applies if clause 23 of the Invitation to Register Interest applies.

The Applicant's attention is also drawn to the Shadow Economy Procurement Connected Policy, which imposes obligations on the Commonwealth to obtain from applicants valid and satisfactory STRs. More information about the requirements arising under the Shadow Economy Procurement Connected Policy is available from the Department of Treasury at <https://treasury.gov.au/policy-topics/economy/shadow-economy/procurement-connected-policy>.

The Applicant must complete and lodge Schedule E - Statement of Tax Record. This is a minimum form and content requirement under clause 3.1(b) of the Invitation to Register Interest.

A STATEMENT OF TAX RECORD

The Applicant is to provide and attach each of the valid and satisfactory STRs referred to in the table below as required for the Applicant's entity type:

If the Applicant is:	STRs required:
(a) a body corporate or natural person	a valid and satisfactory STR in respect of that body corporate or person.
(b) a partner acting for and on behalf of a partnership	a valid and satisfactory STR: (i) on behalf of the partnership; and (ii) in respect of each partner in the partnership that will be directly involved in the delivery of any resultant contract or subcontract (as applicable).
(c) a trustee acting in its capacity as trustee of an Australian trust	a valid and satisfactory STR in respect of the: (i) trustee; and (ii) Australian trust.
(d) a trustee acting in its capacity as trustee of a foreign trust without an Australian tax record of at least 4 years	a valid and satisfactory STR in respect of the: (i) trustee; and (ii) foreign trust.
(e) a joint venture participant	a valid and satisfactory STR in respect of: (i) each participant in the joint venture; and (ii) if the operator of the joint venture is not a participant in the joint venture, the joint venture operator.

(f) a member of a Consolidated Group	a valid and satisfactory STR in respect of the: (i) relevant member of the Consolidated Group; and (ii) head company in the Consolidated Group.
(g) the head company in a Consolidated Group	a valid and satisfactory STR in respect of the head company in the Consolidated Group.
(h) a member of a GST Group	a valid and satisfactory STR in respect of the: (i) GST Group member; and (ii) GST Group representative.

B DECLARATION

By executing the Registration of Interest Form, the Applicant declares and acknowledges that:

1. it has complied with the requirements in item A of Schedule E - Statement of Tax Record to provide and attach each of the valid and satisfactory STRs referred to in the table in item A as required for the Applicant's entity type;
 2. if it is a successful Applicant, it will obtain and hold valid and satisfactory STRs required for the entity type of each subcontractor that, if known at the tender closing date and time, it will engage for the contractor's activities or the works under a subcontract with an expected value of over \$4 million (GST inclusive);
 3. if it is the successful tenderer, it will ensure that:
 - (a) any subcontractor that it subsequently engages for the contractor's activities or the works under a subcontract with an expected value of over \$4 million (GST inclusive) provides it with valid and satisfactory STRs required for the subcontractor's entity type prior to entering into the relevant subcontract;
 - (b) it retains a copy of all STRs held by any subcontractor referred to in paragraph (a) and, on request by the Commonwealth, provide to the Commonwealth a copy of any such STR; and
 - (c) it holds all STRs required for its entity type at all times during the contractor's activities and the works and, on request by the Commonwealth, provide to the Commonwealth a copy of any such STR and failure to do so will be a breach of contract; and
 4. the Commonwealth will only enter into a contract with a tenderer that, on the award date of the contract, holds and has provided to the Commonwealth copies of all valid and satisfactory STRs required for its entity type in accordance with the Shadow Economy Procurement Connected Policy.
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